

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

8. ERIN ANNE WATSON V. ADAM LEE WATSON

24FL0010

On November 10, 2025, Respondent filed a Request for Order (RFO) seeking custody and visitation orders, an order to sell the marital residence, and an order to compel disclosures. The parties appeared before the court for hearing on the RFO on February 19, 2026, at which time they were able to reach a full agreement. As part of their agreement, the parties stipulated to allow Petitioner to remain in the family home so long as she made all mortgage payments in a timely manner. In the event of a missed mortgage payment, or two late payments more than 10 days past due, then Respondent may sell the home in accordance with the court's tentative ruling for the February hearing. The parties agreed to set a review hearing on the present date to address the status of the mortgage payments.

Petitioner filed and served her Income and Expense Declaration on June 2, 2026.

Respondent filed and served his Income and Expense Declaration on June 4, 2026. He filed and served his Supplemental Declaration on June 12th.

Petitioner filed her Supplemental Declaration on June 15th, it was served on June 13th.

Respondent states that the purpose of the present hearing was for Petitioner to show that she has the financial ability to remain in the home and continue to timely pay the mortgage. He argues that she has not made such a showing therefore he requests the stay on the court's prior tentative ruling be lifted and the home be ordered sold. He further requests \$30,000 from the sale be distributed to each party immediately upon closing with the balance to be held in an attorney client trust account for distribution according to the terms of a written agreement of the parties or further court order.

Petitioner asks the court to deny Respondent's requests. She asks that she be allowed to remain in the residence until the minor Jack graduates in June of 2028. Once sold, Petitioner requests an award of 60% of the net proceeds, she asks that the remaining 40% go to Respondent. She further requests a continuance to allow her additional time to obtain employment.

According to the stipulation of the parties, "[a]t the review hearing, Petitioner will be required to demonstrate she has a reasonable ability to pay the mortgage based upon her earnings. Mere timely payment of the mortgage is not sufficient; Wife must demonstrate an income ability and timely payments of the mortgage obligation." Stip. pg. 1 Ln 12-16. In keeping with the stipulation of the parties, the court finds that Petitioner has failed to make a showing of income sufficient to continue making timely payments on the mortgage. As

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such, the stay on the applicable portion of the court's February 19, 2026 tentative ruling is hereby lifted and the court is reissuing those orders as follows: "The parties are ordered to place the house up for sale with Keith Wenger of Imperial Real Estate and Mortgage no later than July 25, 2026. The parties are ordered to take no action which would delay, hinder, or otherwise prevent the sale, including actions which would prevent cleaning, repairs, and maintenance or showing of the home in furtherance of its sale. The parties are ordered to cooperate with the real estate professional to make the home available for showings and to communicate with the real estate professional as needed. The parties are to sign all documents related to the sale of the home in a timely manner."

Once the home is sold, the parties shall each retain \$30,000 of the net proceeds from the sale of the home. The remainder shall be placed in an attorney-client trust account until court order or a written agreement of the parties.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #8: THE STAY ON THE APPLICABLE PORTION OF THE COURT'S FEBRUARY 19, 2026 TENTATIVE RULING IS HEREBY LIFTED AND THE COURT IS REISSUING THOSE ORDERS AS FOLLOWS: "THE PARTIES ARE ORDERED TO PLACE THE HOUSE UP FOR SALE WITH KEITH WENGER OF IMPERIAL REAL ESTATE AND MORTGAGE NO LATER THAN JULY 25, 2026. THE PARTIES ARE ORDERED TO TAKE NO ACTION WHICH WOULD DELAY, HINDER, OR OTHERWISE PREVENT THE SALE, INCLUDING ACTIONS WHICH WOULD PREVENT CLEANING, REPAIRS, AND MAINTENANCE OR SHOWING OF THE HOME IN FURTHERANCE OF ITS SALE. THE PARTIES ARE ORDERED TO COOPERATE WITH THE REAL ESTATE PROFESSIONAL TO MAKE THE HOME AVAILABLE FOR SHOWINGS AND TO COMMUNICATE WITH THE REAL ESTATE PROFESSIONAL AS NEEDED. THE PARTIES ARE TO SIGN ALL DOCUMENTS RELATED TO THE SALE OF THE HOME IN A TIMELY MANNER."

ONCE THE HOME IS SOLD, THE PARTIES SHALL EACH RETAIN \$30,000 OF THE NET PROCEEDS FROM THE SALE OF THE HOME. THE REMAINDER SHALL BE PLACED IN AN ATTORNEY-CLIENT TRUST ACCOUNT UNTIL COURT ORDER OR A WRITTEN AGREEMENT OF THE PARTIES.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE

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COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.